

26STCV04844 26STCV04844

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Case Number: 26STCV04844 Hearing Date: September 24, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

24, 2026

CASE NAME: Travis

Dixon v. PIH Health Good Samaritan Hospital, et al.

CASE NO.: 26STCV04844

DEMURRER

TO FIRST AMENDED COMPLAINT WITH MOTION TO STRIKE

MOVING PARTY: Defendants

PIH Health Good Samaritan Hospital and PIH Health, Inc.

RESPONDING PARTY(S): Plaintiff Travis Dixon

REQUESTED RELIEF:

1. Demurrer

to the first, second, third, and fourth causes of action for failing to state sufficient facts to constitute a cause of action and for uncertainty[1];

2. Motion

to strike portions of the first amended complaint pertaining to punitive damages, pre-judgment interest, costs of suit, and other relief;

3. Defendants

to file their answer within 21 days of this ruling.

TENTATIVE RULING:

1. Demurrer

to the FAC is OVERRULED in full;

2. Motion

to strike portions of the FAC is GRANTED as to requests for prejudgment interest in the prayer (item Nos. 11 and 14) and is otherwise DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 13, 2026, Plaintiff Travis Dixon (Plaintiff) filed a complaint against Defendants PIH Health Good Samaritan Hospital and PIH Health, Inc. (Defendants) with causes of action for: (1) assault; (2) battery; (3) general negligence; and (4) negligent hiring, supervision, retention.

According to the complaint, Plaintiff took his grandmother to Defendants' emergency room on September 5, 2024 where he was physically accosted by a John Doe and sustained injuries. Plaintiff alleges that John Doe worked for Defendants.

On June 2, 2026, Plaintiff filed the operative first amended complaint (FAC).

On July 28, 2026, Defendants filed the instant demurrer with motion to strike. On September 11, 2026, Plaintiff filed an opposition to the demurrer. On September 16, 2026, Defendants filed a reply in support of the demurrer.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required

to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, the parties met and conferred on July 23, 2026 at 2:30 p.m. (Declaration of Kayla F. Phillips ¶ 2.) Accordingly, this requirement is met.

Demurrer – Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

Demurrer – Uncertainty

CCP § 430.10(f) provides that a party may demurrer to a pleading because: “The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.”

However, “demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a

defendant cannot reasonably respond.” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.) “A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant’s knowledge.” (Ibid.)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.)

ANALYSIS:

Demurrer

Uncertainty

Defendants contend the entire FAC fails as uncertain because Plaintiff did not allege sufficient facts pertaining to Doe 1.

Plaintiff alleges they alleged enough facts to identify Doe 1 for the pleadings stage and that additional facts are within Defendants’ control since Doe 1 is their security guard.

Defendants reply that there are insufficient facts alleged showing Doe 1 was indeed a security guard employed or contracted by Defendants that are not conclusory.

After reviewing the FAC, the allegations are not fatally

uncertain. First, Plaintiff alleges that “DOE 1 was employed as a security guard or in a security-related capacity at the HOSPITAL at all relevant times.” (FAC ¶ 7.) The security guard allegation is reiterated in paragraphs 17, 45, and 46. The court rejects Defendants’ argument that Plaintiff needs to allege additional facts, such as the clothing Doe 1 was wearing or anything else to give the impression that he was a security guard. The allegation Doe 1 was a security guard is clear enough to survive the demurrer stage.

Accordingly, the court OVERRULES Defendants’ demurrer to the entire FAC on uncertainty grounds.

Third Cause of

Action: General Negligence

Defendants contend this claim fails because Plaintiff failed to allege facts or circumstances that would have put them on notice of a risk of harm, so there is no duty to prevent the alleged assault. Additionally, there are insufficient facts showing vicarious liability.

Plaintiff argues that he sufficiently stated this claim under California’s pleading standard whereby he alleged ultimate facts. Plaintiff also argues that he sufficiently alleged vicarious liability since Doe 1’s use of force was a foreseeable outgrowth of his duties as a security officer.

Defendants did not reply to this argument.

A claim for negligence requires: (1) a legal duty owed to plaintiffs to use due care; (2) breach of that duty; (3) causation; and (4) damages. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

“Unless required by or under the authority of law to employ that particular agent, a principal is responsible to third persons for the negligence of his agent in the transaction of the business of the agency, including wrongful acts committed by such agent in and as a part of the transaction of such business, and for his willful omission to fulfill the obligations of the principal.” (Civ. Code § 2338.) Under “respondeat superior, employers are vicariously liable for tortious acts committed by employees during the course and scope of their employment.” (Vogt v. Herron Construction, Inc. (2011) 200 Cal.App.4th 643, 649.) The

“incident leading to injury must be an outgrowth of the employment” or “inherent in the working environment” or “typical of or broadly incidental to the enterprise the employer has undertaken.” (Ibid. [internal quotations and brackets omitted.]) There is no liability when the employee has “substantially deviated from his duties for personal purposes.” (Ibid. [italics omitted.])

Here, Plaintiff sufficiently stated a claim for negligence.

The only issue is whether there is vicarious liability by Defendants for Doe 1's actions. At the pleadings stage, there is. First, Doe 1 is alleged to be Defendants' employed security guard. (FAC ¶¶ 17, 45.) Second, the alleged assault and battery is enough, at the pleadings stage, to be an outgrowth of Doe 1's employment. (See *Maria D. v. Westec Residential Sec., Inc.* (2000) 85 Cal.App.4th 125, 146-147 [discussing lack of respondeat superior liability because the private security guard's motivation to rape the plaintiff did not arise out of the performance of his duties.])

Accordingly, the court **OVERRULES** Defendants' demurrer to the first cause of action.

Fourth Cause of
Action: Negligent Hiring, Supervision, Retention

Defendants argument here is similar to the third cause of action. Namely, there are no facts suggesting Defendants knew anything about Doe 1 let alone that they could anticipate the alleged conduct.

Plaintiff's opposition is similar, too.

Defendants did not reply.

An employer may be liable to a third person for negligent hiring or retention when the employer hired an employee who was incompetent or unfit, the employer had reason to believe an undue risk of harm would exist because of the employment, and harm occurred. (Federico v. Superior Court (1997) 59 Cal. App. 4th 1207, 1213-1214.) “Liability for negligent supervision and/or retention of an employee is one of direct liability for negligence, not vicarious liability.” (Delfino v. Agilent Technologies, Inc. (2006) 145 Cal.App.4th 790, 815.) “To establish negligent supervision, a

plaintiff must show that a person in a supervisory position over the actor had knowledge of the actor's propensity to do the bad act." (Z.V. County of Riverside (2015) 238 Cal.App.4th 889, 903 .)

For similar reasons to the first cause of action, the court OVERRULES Defendants' demurrer to the second cause of action.

Motion to Strike

Defendants move to strike various portions of the FAC. The only items relevant to them pertain to the third and fourth causes of action (item Nos. 11-16).

Therefore, the court DENIES the motion to strike as to items Nos. 1-10.

The remaining items concern requests for prejudgment interest, costs of suit, and other relief.

i.

Prejudgment

Interest

Defendants contend prejudgment interest is improper because Plaintiff did not allege a sum certain. Plaintiff did not oppose the motion to strike.

"A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt." (Civ. Code § 3287(a).) "Every person who is entitled under any judgment to receive damages based upon a cause of action in contract where the claim was unliquidated, may also recover interest thereon from a date prior to the entry of judgment as the court may, in its discretion, fix, but in no event earlier than the date the action was filed." (Civ. Code § 3287(b).) "In an action for the breach of an obligation not arising from contract, and in every case of oppression, fraud or malice, interest may be given in the discretion of the jury." (Civ. Code § 3288.) The test for determining "certainty" is whether defendant actually knows the amount

owed or could have computed the amount from reasonably available information. (Children's Hosp. and Medical Center v. Bonta (2002)

97 Cal.App.4th 740, 774.) "Thus, where the amount of damages cannot be resolved except by verdict or judgment, prejudgment interest is not appropriate." (Ibid.)

Here, the request for prejudgment interest is unwarranted.

Notably, there are no allegations of damages with certainty for a prejudgment interest award.

Accordingly, the court GRANTS Defendants' motion to strike as to item Nos. 11 and 14.

ii.

Costs

Defendants did not include argument to develop this request.

The court deems this argument abandoned. (See Lafferty v. Wells Fargo Bank (2013) 213 Cal. App. 4th 545, 571-72 ["When a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"].)

Accordingly, the court DENIES Defendants' motion to strike as to item Nos. 12 and 15.

iii.

Other

Relief

As with costs, Defendants did not include argument to develop this request. The court deems this argument abandoned, too.

Accordingly, the court DENIES Defendants' motion to strike as to item Nos. 13 and 16.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the FAC is OVERRULED in full;

2. Motion

to strike portions of the FAC is GRANTED as to requests for prejudgment interest in the prayer (item Nos. 11 and 14) and is otherwise DENIED;

3. Defendants

to file their answer within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 24, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The first two causes of action are not brought against Defendants. As such, the court will only address the third and fourth causes of action.